

ENTITLED: "ANNEXING TO THE CITY OF CHEYENNE, WYOMING, THE SOUTH ONE HUNDRED FIFTY FEET (150') OF TRACT 119, ALL OF TRACT 120, AND THOSE PORTIONS OF TRACTS 135 AND 136 NORTH OF THE RIGHT OF WAY FOR U.S. HWY. NO 30, AND ALL OF VACATED CHEYENNE STREET (60'), AND THE WEST ½ (25') OF VACATED FILLMORE AVE., ADJACENT TO SAID TRACTS, SUNNYSIDE ADDITION FOURTH FILING, SITUATE IN A PORTION OF THE SE1/4 SE1/4 OF SECTION 27, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH PM, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF THE INTERSECTION OF FILLMORE AVENUE AND CHARLES STREET)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Sunnyside Southern Baptist Church, owner of the south one hundred fifty feet (150') of Tract 119, all of Tract 120, and those portions of Tracts 135 and 136 north of the right of way for U.S. Hwy. No 30, and all of vacated Cheyenne Street (60'), and the west ½ (25') of vacated Fillmore Ave., adjacent to said Tracts, Sunnyside Addition Fourth Filing, situate in a portion of the SE1/4 SE1/4 of Section 27, Township 14 North, Range 66 West of the 6th PM, Laramie County, Wyoming, have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by John J. Studley, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 4828; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MU Mixed Use by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the

remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

MARIAN J. ORR, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published:_____

ANNEXATION REPORT

Sunnyside Church

Owner Petitioned Annexation Summation

CASE NUMBER(s): UDC-19-00308 **SUBDIVISION CODE:** SSA 04

PREPARED BY: Tawn Hillenbrand

PUBLIC HEARING: July 8, 2019 – City Council

MEETING DATES:

City Council:	August 12, 2019	1 st Reading
Public Service Committee:	August 20, 2019	
City Council:	August 26, 2019	2 nd Reading
Public Service Committee:	September 4, 2019	
City Council:	September 9, 2019	3 rd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Petition to Annex (Signed by at least 51% of property owners who own at least 51% of land to be annexed); Annexation Map; Soils Report (requirement fulfilled by deferral request); Signed clearance from the Board of Public Utilities
- **On August 5, 2019, the Agent for the Applicant submitted a letter stating the Applicant wishes to withdraw the annexation petition and the accompanying zone change and subdivision applications. This letter is attached to this report.**

RECOMMENDATION: Although the Applicant wishes to withdraw the annexation petition due to their inability to provide the City Fire Department’s demand for a fire safety inspection report of the existing gymnasium located within the annexation site, should the Governing Body wish to move forward with the annexation petition, Staff recommends approval of the annexation application.

According to Wyoming State Statute 15-1-408, annexations are effective upon the publication of the ordinance (not the recording of the annexation map); however, most City and County systems only update their maps and services upon the recording of the annexation map with the County Clerk. Therefore, instead of conditioning approval of the annexation, Staff recommends that the applicants provide a recordable annexation map to the City prior to the approval of the annexation Ordinance on 3rd reading – so that the City may record a corrected and suitable annexation map as close to the publication of the Ordinance as possible. If the recordable annexation map is not provided to Staff prior to 3rd reading, Staff recommends the Governing Body **postpone** approval until the corrected map is provided. Through the review process, Staff has identified the following necessary correction to the map:

1. The two Legal Descriptions provided on the map are inconsistent with one another.

ANNEXATION REPORT & STAFF REPORT

Sunnyside Church
Owner Petitioned Annexation

CASE NUMBER(s): UDC-19-00308 SUBDIVISION CODE: SSA 04
PREPARED BY: Tawn Hillenbrand
PUBLIC HEARING: July 8, 2019
OWNERS: Sunnyside Southern Baptist Church (307) 632-6496
Gerald E. Boyd, President/Director
P.O. Box 5267
Cheyenne, WY 82003
AGENT: John J. Studley, PLS (307) 287-4755
615 West Dale Blvd.
Cheyenne, WY 82009
PROJECT: Sunnyside Church Annexation

WORK DESCRIPTIONS: An annexation application for Sunnyside Church.

- LOCATION:
- 1. Legal Description: the south one hundred fifty feet (150') of Tract 119, all of Tract 120, and those portions of Tracts 135 and 136 north of the right-of-way for U.S. Hwy. No. 30, and all of vacated Cheyenne Street (60'), and the west ½ (25') of vacated Fillmore Ave., adjacent to said Tracts, Sunnyside Addition Fourth Filing, situate in a portion of the SE1/4 SE1/4 of Section 27, Township 14 North, Range 66 West of the 6th PM, Laramie County, Wyoming
 - 2. Location: south of the intersection of Fillmore Avenue and Charles Street.
 - 3. Addresses: 3401 Cleveland Avenue

SIZE: 4.15 Acres

CURRENT ZONING: County MU Mixed-use
PROPOSED ZONING: City MUB Mixed-used Business Emphasis
EXISTING LAND USE: Community Assembly (church)
PROPOSED LAND USE: Community Assembly (church)

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential, Child Care Center	County MU	County
South	US Highway, Vacant	CB, MR	City
East	Vacant	MUB	City
West	Community Assembly, Single-family Residential	MUB	City

EXECUTIVE SUMMARY:

This annexation application is for one (1) parcel of land at approximately 4 acres located south of the intersection of Fillmore Avenue and Charles Street. This application was submitted along with a zone change application and preliminary plat application. The land to be annexed would need to be given a City zone to allow any development actions. The zone change application proposes changing the County MU Mixed-use zone to MUB Mixed-use Business Emphasis.

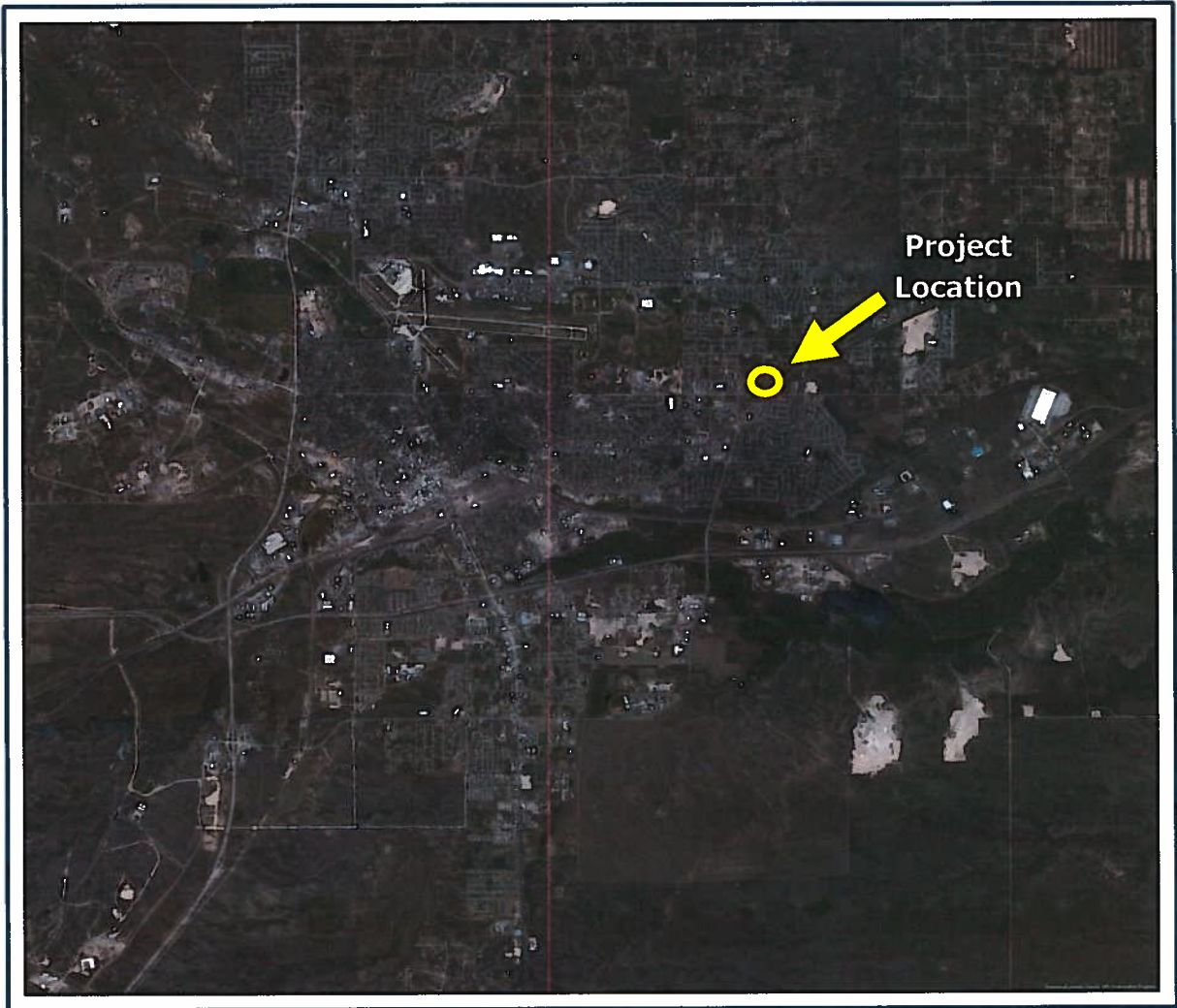
PlanCheyenne is supportive of annexing this land into the City. This land is located within the Urban Service Boundary and is designated Public and Quasi-Public on the future land use map. The Future Land Use Map anticipates the area to develop with uses related to community services such as educational facilities, civic buildings and places of worship. The future land uses anticipated in the Public and Quasi-Public land use category are best served by being in City limits and connected to City services.

As with any annexation expansion there would be an impact on service provision within the City. However, as this is a small expansion adjacent to current City services, the impact on City services would be minor. The property is contiguous to current City limits to the North, East, and West (see Map 4 on page 7).

The Fire Department has expressed significant concern regarding the safety of the existing gymnasium located on the subject property. The Fire Department is requiring a code summary evaluation from a Registered Fire Protection Engineer of the gymnasium prior to being brought into the City. The evaluation would address occupancy class, required fire systems, appliances, fire access as well as confirming the ability of the road to support the heaviest piece of fire apparatus, or 75,000 pounds. The report would include a proposed timeline for which any fire-code deficiencies or violations would be required to be brought into compliance. The Fire Department would not support Annexation until the code summary evaluation is reviewed by their Department and found complete.

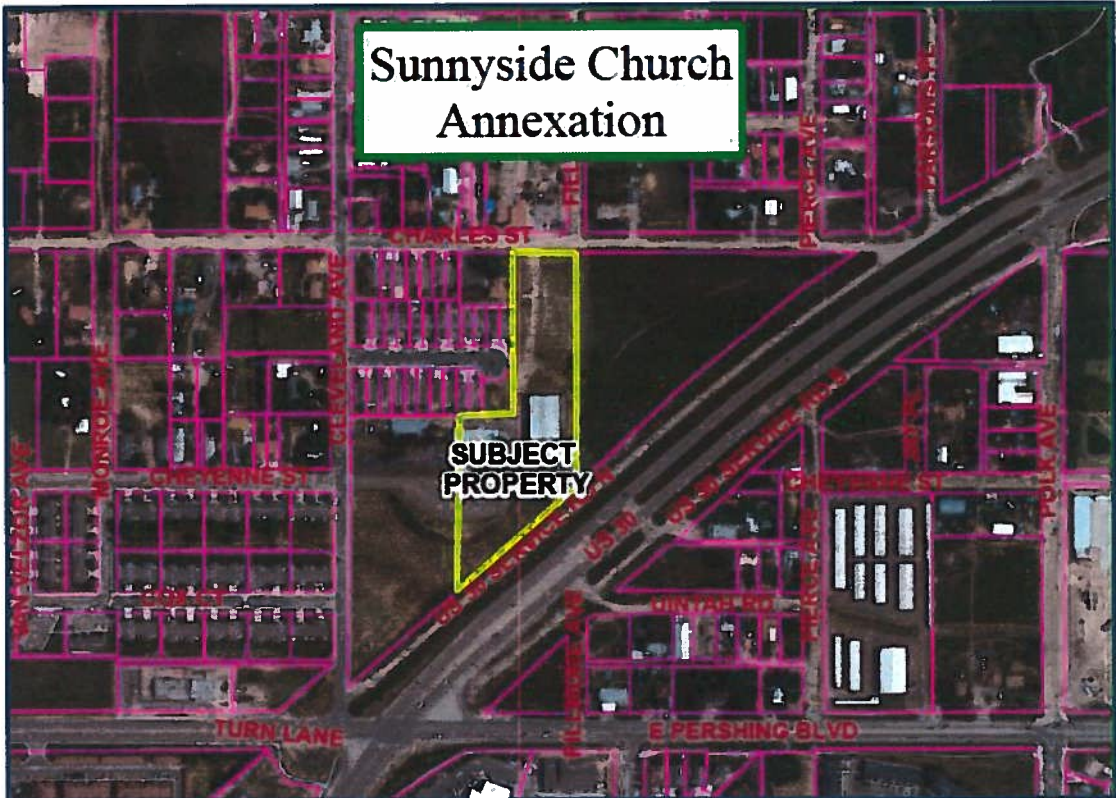
However, due to meeting the criteria found in Wyoming Statute 15-1-402, staff recommends approval of this annexation.

LOCATION/VICINITY MAP:



Map #1 – Project Location / Vicinity Map
Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map #2 – Site aerial highlighting the subject property
Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Subject Property looking northeast from west property line
Source: Development Office



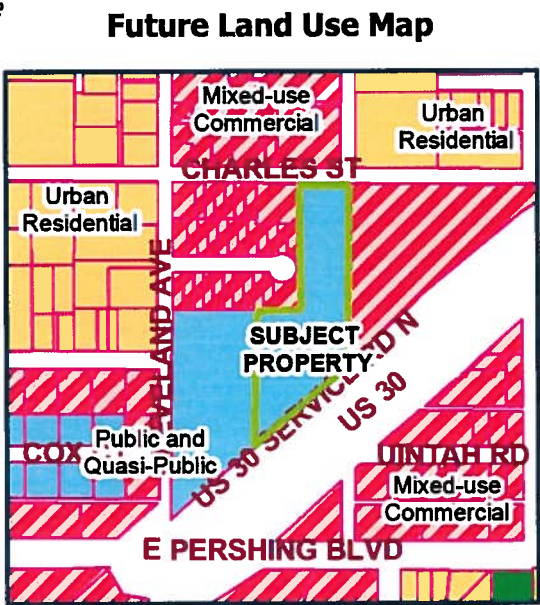
Photograph #2 – Subject Property looking south from Fillmore Ave. and Charles Street.
Source: Development Office

PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.*

This annexation is consistent with PlanCheyenne.

PlanCheyenne encourages the City to grow within the Urban Service Boundary and to maximize the use of existing infrastructure. The proposed annexation is within the Urban Service Boundary. This property is designated Public and Quasi-Public on the Future Land Use map. The Public and Quasi-Public category includes areas related to community-based services and activities and are often already developed. The subject property is currently developed with a church.

PlanCheyenne encourages future annexations to avoid the creation of new county pockets and the reduction of existing county pockets. This annexation does not create any new county pockets and eliminates an existing county pocket.



Map #3 – Future Land Use Map
Source: Cheyenne/Laramie County GIS Cooperative Program

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

COMMON WELFARE – *An annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town.*

The subject property is currently connected to City water and sewer without the benefit of an approved Outside Users Agreement with the City’s Board of Public Utilities (BOPU). Annexation would allow the Applicant to purchase City water and sewer at a lower rate. City police and fire services would be available immediately, which serves the public safety and welfare. Therefore, the annexation of this property would increase the health, safety, and welfare of the residents of the Cheyenne area. However, the Fire Department has expressed significant concern regarding the safety of the existing gymnasium located on the subject property. The Fire Department is requiring a code summary evaluation from a Registered Fire Protection Engineer of the gymnasium prior to being brought into the City. The evaluation would address occupancy class, required fire systems, appliances, fire access as well as confirming the ability of the road to support the heaviest piece of fire apparatus, or 75,000 pounds. The report would include a proposed timeline for which any fire-code deficiencies or violations would be required to be brought into compliance.

PART OF THE CITY – *The urban development of the area sought to be annexed would be constituted a natural, geographic, economic, and social part of the annexing city or town.*

This property will constitute a natural, geographic, economic, and social part of the City. The property is adjacent to both developed and vacant land within City boundaries. Charles Street immediately to the north and Cleveland Avenue to the west are also in City limits and under City maintenance. The properties location along U.S. Highway 30 makes this parcel a natural geographic part of the City. The employees of the church as well as the church members are likely to live in the Cheyenne area and are a part of the social and economic fabric that is Cheyenne.

SERVICE EXTENSION LOGICAL EXPANSION – *The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed.*

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to businesses and residents will also be available. Police and fire protection would be extended upon annexation. The subject property is currently connected to City water and sewer.

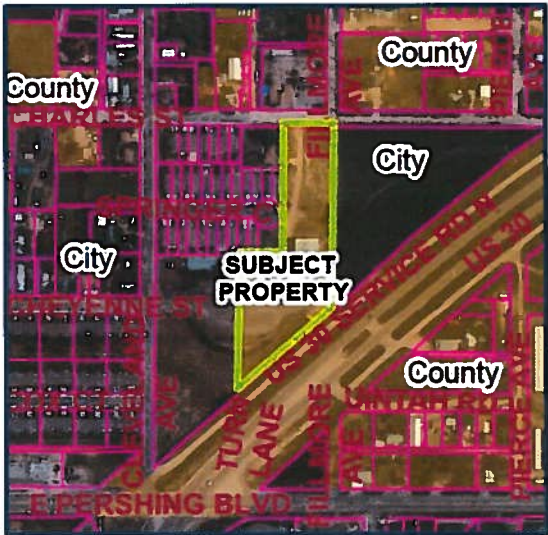
CONTIGUOUS – *The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407.*

The proposed for annexation perimeter is about 75% contiguous. Contiguity is achieved along the northern, eastern, and western edge of the proposed annexation.

UTILITIES – *If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to service the annexed area pursuant to W.S. 15-1-410.*

Utility franchises are in place to serve the annexed area.

Current City Boundaries



Map #4 – Current City Boundaries
Source: Cheyenne/Laramie County GIS Cooperative Program

CERTIFIED MAILING – *The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405(a).*

A certified mailing was made to the landowners and public utilities on June 7, 2019, and the earliest confirmation of receipt was recorded on June 10, 2019. The public hearing for this annexation was scheduled on July 8, 2019. Twenty (20) business days prior to the announced public hearing is June 7, 2019.

ANNEXATION REPORT DATA: In compliance with W.S. § 15-1-402(c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0. Additional on- and off-site improvements may be required with subsequent development actions. On-site improvements for fire safety will be required with annexation.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Police and Fire services would be provided immediately upon the recording of the annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Future development would require extension of water and sewer services, which are available to the subject property.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial properties, based upon volume and meter size.
- (v) The current property tax mill levy imposed is 66.52 and projected property tax mill levy imposed by the city is 71.52.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality

REVIEW

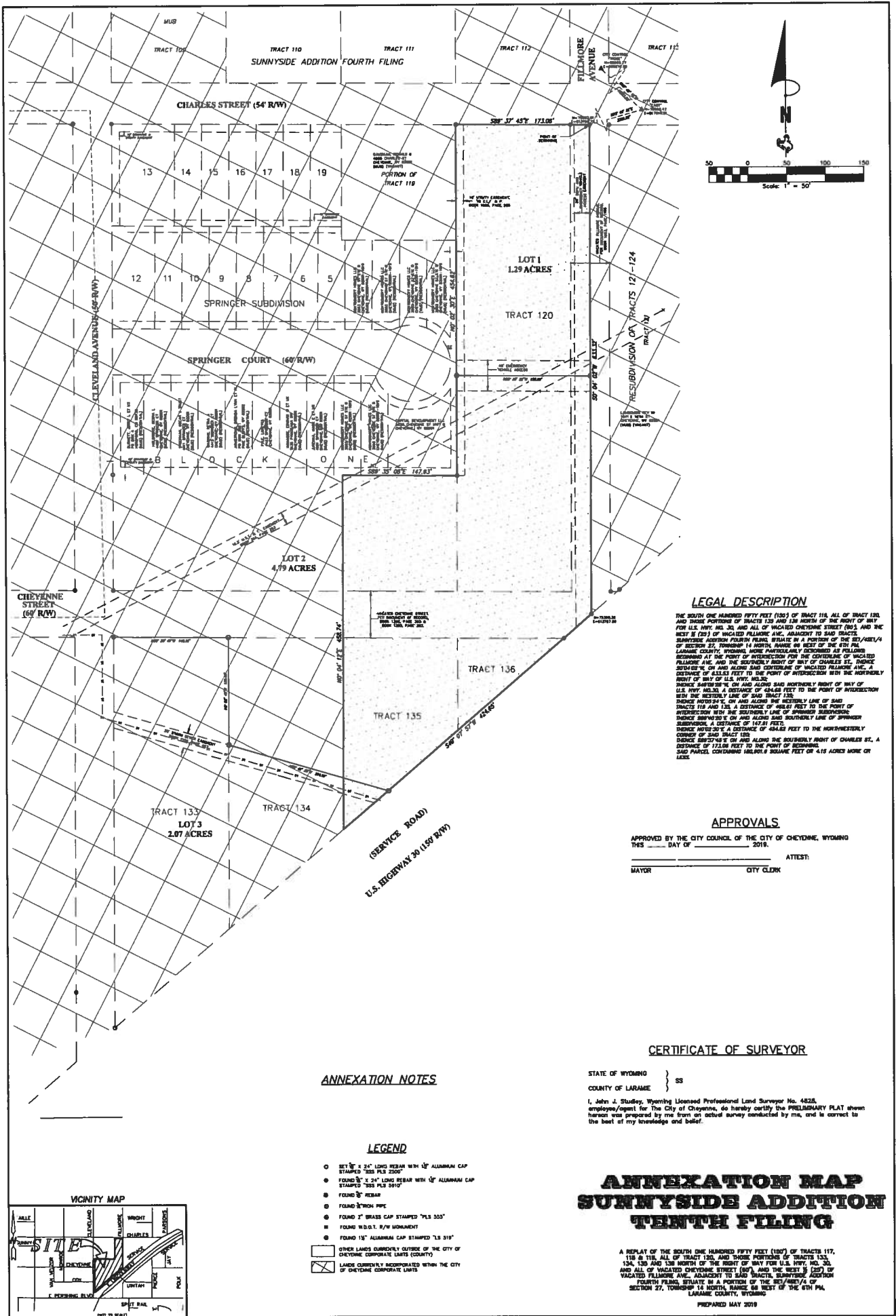
Reviewing Agencies with Comments:

- Development (Tawn Hillenbrand)
 - o Proposed Annexation pursued under WS 15-1-403 (landowner petition)
 - o Land proposed to be annexed is contiguous to current City limits (to the north, east, west).
- Engineering Tech/GIS (Gary Stogsdill)
 - o **(FYI)** 1.) Block number
 - o **(FYI)** 2.) SP coordinates on plat boundary.
- Environmental Health Department (Roy Kroeger)
 - o **(FYI)** Laramie County Small Wastewater System Regulations-
The existing septic tank shall be properly abandoned AND inspected by this office.
Provide this office 24-hour notice of destroying the tank for proper inspections.
- Fire Department (Jim Schamerhorn)
 - o **(Condition on Approval)** Please see the attached letter pertaining to the required code summary evaluation from a Registered Fire Protection Engineer.
- Urban Planning (Tawn Hillenbrand)
 - o **(FYI)** Proposed annexation is within the Urban Service Boundary, and the future land use map anticipates the area to develop with uses related to community services.

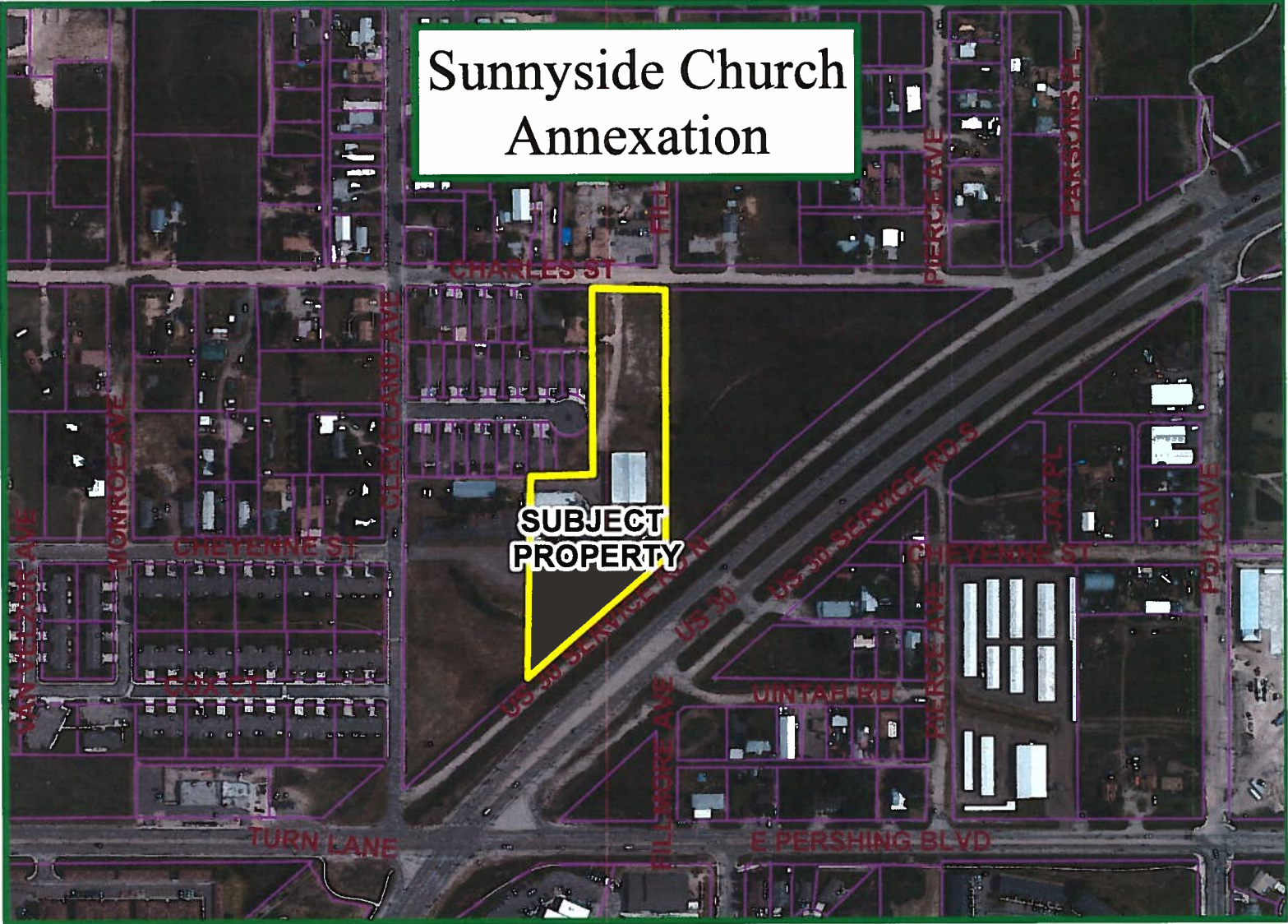
Attachments: Annexation Map – submitted by applicant

Aerial Map – produced by City staff
Fire Department Letter – submitted by Jim Schamerhorn
Withdrawal Request – submitted by applicant

Cc: Agent
Owners
File



Sunnyside Church Annexation



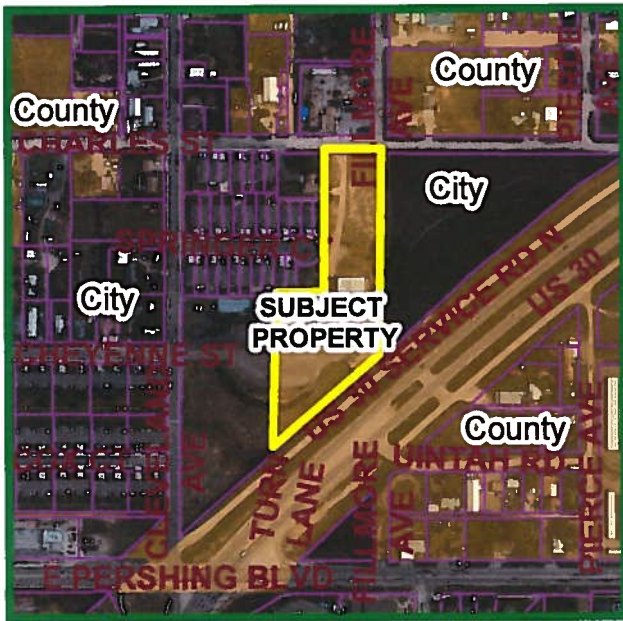
Application Number
Annexation
UDC-19-00308

Applicant: Sunnyside Southern Baptist Church
Agent: John J. Studley, PLS

Scale applies to
above map only

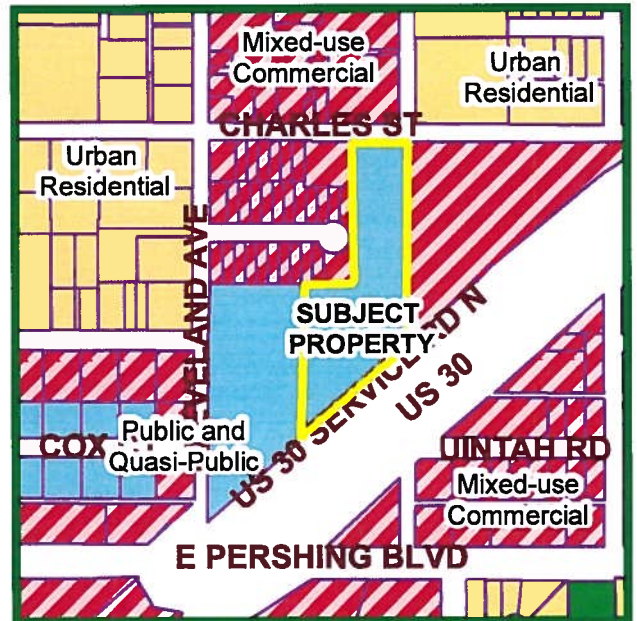


City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Jim Schamerhorn

From: Jim Schamerhorn
Sent: Tuesday, June 4, 2019 10:24 AM
To: Jack Studley
Cc: Bob Mason
Subject: RE: Sunnyside Baptist Church

Good morning Jack,

Thank you for the research and follow up on information from the county regarding their evaluation of the church gymnasium.

After reading 2010 and 2012 letters, our feeling is the county misinterpreted the Intent of the code and specific sections regarding the need for fire sprinkler requirements in the basement of the gymnasium.

Section 9.117 of the 1982 Uniform Fire Code (Occupancy Classification) identifies the gymnasium as an A-3 Occupancy.

"Any building or portion of a building having an assembly room with an occupant load of less than 300 without a stage, including buildings used for educational purposes and not classed as a Group E or Group B, Division 2 Occupancy". UFC, Section 10.309 (C) item 2, identifies the requirement for fire sprinklers in basements of assemblies over 1500 square feet.

As promised, I've discussed annexation with the Fire Marshal and have come to the following conclusion; As originally requested we will need a code summary evaluation from a Registered Fire Protection Engineer of those buildings being brought into the city. The analysis shall address occupancy class, required fire systems, appliances, fire access as well as confirming the ability of the road to support our heaviest piece of apparatus or 75,000 lbs. In the report, the FPE (in consultation with the church) may include a proposed time line for correction of identified non-code issues.

We hope this provides a clear understanding of our concerns and expectations for resolving the annexation of the church property.

Please contact our office with any questions,

Best regards,

Jim Schamerhorn
Fire Plans Examiner/Fire Inspector
Cheyenne Fire & Rescue
307-637-6312
jschamerhorn@cheyennecity.org

From: Jack Studley
Sent: Wednesday, May 29, 2019 3:40 PM
To: Bob Mason <bmason@cheyennecity.org>; Jim Schamerhorn <jschamerhorn@cheyennecity.org>
Cc: Tawn Hillenbrand <thillenbrand@cheyennecity.org>
Subject: Sunnyside Baptist Church

Bob & Jim

Attached are a couple of pieces of correspondence with the Laramie County Planning and Development Office concerning the Sunnyside Baptist Church gymnasium and its use.

Hopefully we can research this a little further and get together to see if we can't create a resolution to the issues.

John J. Studley, PLS

615 West Dale Blvd.
Cheyenne, WY 82009
(307) 287-4755
Jklz0318@gmail.com

5 August 2019

TO: Cheyenne Planning Office
Attn: Susanna Montana
3966 Archer Parkway
Cheyenne, WY 82001

Re: Sunnyside Baptist Church.

Dear Ms. Montana,

Sunnyside Baptist Church have submitted applications/petitions to your office to annex and re-zone a portion, and replat all of their lands in eastern Cheyenne for the purpose of subdividing the lands in an appropriate manner for disposal of the vacant lands.

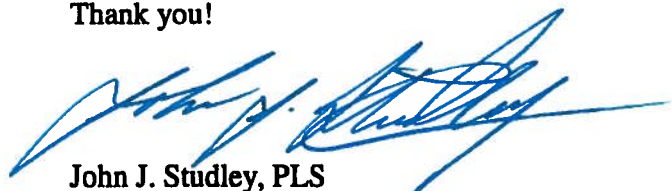
The acting Fire Marshall, Bob Mason has informed me that they will not waive the requirement for a Fire Protection Certification on the existing gymnasium.

Sunnyside Baptist Church has decided that these requirements are unnecessary for the following reasons:

- Documentation from Laramie County has already been provided to show the gymnasium was constructed in 1981 in compliance with existing building code standards.
- There is no proposed change to the construction or function of the existing church complex.
- The required Fire Protection Certification is cost prohibitive (\$5,000).
- The gymnasium would be subject to closure if not brought up to your current building code standards (\$50,000+). Again, cost prohibitive.

Therefore, they have decided to remain in the County, and hereby withdraw the referenced applications/petitions for Annexation, Zone Change, Preliminary Plat and Final Plat.

Thank you!



John J. Studley, PLS
Agent for Sunnyside Baptist Church
